

26STCV08860 26STCV08860

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 26STCV08860 Hearing Date: August 4, 2026 Dept: 408

1. Plaintiff Jamal J. Savage's Motion for Leave to

File Second Amended Complaint is GRANTED.

2. Defendant Insomnia Cookies, LLC's Demurrer to Plaintiff Jamal J. Savage's First Amended Complaint is OVERRULED, as moot.

I.

BACKGROUND

On March 19, 2026, Plaintiff Jamal J. Savage

("Plaintiff") filed a complaint against Defendant Insomnia Cookies, LLC

("Defendant") alleging causes of action for:

1.

Disability

Discrimination;

2.

Retaliation; and

3.

Wrongful

Termination.

On April 29, 2026, Plaintiff filed a First Amended

Complaint ("FAC") alleging cause of action for:

1.

Disability

Discrimination;

2.

Failure to

Accommodate;

3.

Failure to Engage

in Interactive Process;

4.

Retaliation;

5.

Harassment; and

6.

Wrongful

Termination.

On June 2, 2026, Defendant filed this Demurrer to

Plaintiff's FAC. On July 30, 2026, Defendant filed a Notice of Non-Opposition.

On July 1, 2026, Plaintiff filed this Motion for Leave

to Amend to File a Second Amended Complaint. On July 22, 2026, Defendant filed an opposition. As of July 30, 2026, no reply has been filed.

II.

MOTION FOR LEAVE TO AMEND

A. Legal

Standard

Under Code of Civil Procedure section

473(a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd.

(a)(1).) Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring

amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 [internal citations omitted].) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend[.]” (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, rule 3.1324(a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, rule 3.1324(b).)

B. Discussion

Plaintiff seeks leave to file a second amended complaint to include additional allegations to clarify issues of venue, employment relationship, work location, job duties, Plaintiff's disability, accommodation history, protected activity, adverse actions, separation from employment, and administrative exhaustion. (Motion, at p. 1.) Plaintiff contends that that the proposed amendment address the deficiencies identified in Defendant's Demurrer and meet and confer efforts as to Plaintiff's FAC. (Id., at p. 2.) Plaintiff argues that leave to amend is liberally granted and that Defendants will suffer no meaningful prejudice from the amendment. (Id., at pp. 1-2.)

In opposition, Defendant argues that Plaintiff failed to meaningfully meet and confer prior to filing this motion for leave to amend which resulted in Defendant being forced to file a demurrer to Plaintiff's FAC. (Opp., at pp. 2-3.) Defendant also argues that it would be prejudiced by Plaintiff's conduct. (Id., at pp. 3-4.)

The court finds that Plaintiff complies

with the requirements of Rule 3.1324 by providing a copy of the proposed second amended complaint, identifying the changes to be made, and a supporting declaration stating why the amendment is necessary. (Savage Decl., ¶¶ 2-9, Exhs. 1-2.) The court also finds that any prejudice to Defendant would be minimal as there is ample time to contest the amended pleading. To the extent that Defendant challenges the legal viability of Plaintiff's claims or claims that an arbitration agreement applies to Plaintiff's claims, Defendant is free to raise such argument through an appropriate motion.

Accordingly, the motion is granted.

III.

DEMURRER

A. Legal Standard

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Discussion

Defendant demurs to Plaintiff's FAC

pursuant to Code of Civil Procedure section 430.10, subdivision (e) and (f), on the grounds that Plaintiff does not state facts sufficient to constitute the causes of action and the pleading is uncertain.

However, as the court granted Plaintiff's

Motion for Leave to File a Second Amended Complaint, the Demurrer to Plaintiff's FAC is overruled as moot.

IV.

CONCLUSION

1. Plaintiff Jamal J. Savage's Motion for Leave to File Second Amended Complaint is GRANTED.

2. Defendant Insomnia Cookies, LLC's Demurrer to Plaintiff Jamal J. Savage's First Amended Complaint is OVERRULED, as moot.